Employment Tribunal

Claim form — ET1

You must complete all questions marked with '*'. Office use only: Case number 2204417/2025 · Date received 26 February 2025 · Tribunal office: London Central

1 Your details (the claimant)

1.1 Title*	Ms
1.2 First name*	Priya
1.3 Surname*	Okafor
1.4 Date of birth	9 March 1977
1.5 Address*	14 Marlow Court, Cambridge CB4 2HN
1.6 Contact	Via representative (see section 11)

2 Respondent's details

2.1 Name of respondent*	Ashbourne Healthcare Group Limited
2.2 Address*	Friars Gate, 1010 Cambourne Business Park, Cambridge CB23 6DP
2.3 Acas early conciliation certificate number	R126561/24/71

3 Employment details

3.1 Employment start date	14 May 2018
3.2 Employment end date	31 January 2025
3.3 Is your employment continuing?	No
3.4 Job title	Regional Operations Director (East)
3.5 Hours per week	37.5 (plus such hours as required)
3.6 Gross pay	£99,200 p.a. (incl. car allowance)
3.7 Net monthly pay	£5,140

8 Type of claim

I am making a claim for (tick all that apply): [X] I was unfairly dismissed (including constructive dismissal). [X] I was dismissed / subjected to a detriment for making a protected disclosure (whistleblowing). [X] I am owed notice pay. [ ] Discrimination. [ ] Redundancy payment. [ ] Other.

8.2 Details of your claim*

1. The Claimant was employed by the Respondent, a provider of regulated care services, as Regional Operations Director (East) from 14 May 2018 until her dismissal with effect from 31 January 2025.

2. Between June and July 2024 the Claimant made a series of disclosures to the Respondent's Chief Operating Officer, General Counsel and Chief Executive. She disclosed her reasonable belief that staffing at

the Respondent's Oakfield Lodge and Bramwell House care homes had fallen below CQC-registered minimums and dependency requirements, thereby endangering the health and safety of residents, and that staffing returns submitted to commissioners overstated substantive cover. These were protected disclosures within sections 43A to 43B of the Employment Rights Act 1996, made in the reasonable belief that they were in the public interest.

3. Following those disclosures the Claimant was subjected to detriments, namely: removal from the regional safeguarding steering group on 15 July 2024; exclusion from the August 2024 leadership offsite; the commencement of an unprecedented negative performance review on 12 August 2024; and being told her role was 'under review'. Each detriment was done on the ground that the Claimant had made protected disclosures, contrary to section 47B of the Act.

4. On 24 January 2025 the Claimant was given notice of dismissal, purportedly by reason of redundancy. The Claimant's case is that the redundancy was a sham and that the reason, or principal reason, for her dismissal was that she had made protected disclosures. Her dismissal was therefore automatically unfair under section 103A of the Act, alternatively unfair under section 98.

5. The redundancy selection pool and scoring were manipulated to engineer the Claimant's departure. The Claimant scored lowest on subjective criteria applied by a manager who was the subject of her disclosures. The consultation was a foregone conclusion and the alternative role offered was a demotion.

6. The Claimant claims: a declaration; compensation for automatically unfair dismissal (uncapped); compensation for detriment including injury to feelings; a basic award; notice pay; and an uplift for failure to comply with the Acas Code. Full particulars are set out in the attached Schedule of Loss.

11 Your representative

11.1 Name of representative	Ms Rachel Hartley
11.2 Name of organisation	Birchall Stone LLP
11.3 Address	18 Cornhill, London EC3V 3ND
11.4 Reference	BSL/PO/4471

Signature: P. Okafor (by representative) Date: 26 February 2025